Chapter 13

The Evolution of Agenda-Setting Institutions in Congress: Path Dependency in House and Senate Institutional Development

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Introduction

Scheduling legislation is one of the most vexing collective-action problems faced by a legislative body. When the combination of must-pass legislation and legislation wanted by individual members exceeds the available time and resources, choices among alternatives must be made. These choices about the form and content of the legislative agenda create winners and losers, so it is important that we understand how these agenda-setting institutions emerge and develop. In this chapter we focus on the two most important agenda-setting institutions in the U.S. Congress—special rules in the House and unanimous-consent agreements (UCAs) in the Senate.

From the 1880s on, the House of Representatives and the Senate took different procedural paths in addressing the problem of setting the floor agenda. In the House, the resolutions reported by the Committee on Rules that eventually became known as "special rules" took form in the 1880s. At about the same time, complex UCAs became a common way to limit debate and schedule votes in the Senate. In both chambers, management of burgeoning workloads and the evolving partisan conflict appear to have motivated innovations in the mechanisms of setting the floor agenda.

We know something about the path taken by each house. Bach (1990) provides the first account of the changing strategies reflected in the House Committee on Rules resolutions, a transformation he describes as a shift

from special orders to special rules, while Bach and Smith (1988) note the increasing sophistication of special rules in the late 1970s and 1980s. Gamm and Smith (2000) report on the transformation of UCAs from informal arrangements among senators to formal orders of the Senate, while Smith and Flathman (1989) track the changing content of UCAs in the last decades of the 20th century.

Missing from previous studies is a systematic account of the acquisition of the multiple functions served by special rules and UCAs. Explanations of institutional development cannot be tested without a more systematic account that identifies the timing of key changes in rules and practice. We seek to demonstrate how and when each chamber adopted innovations in the use of these agenda-setting tools.

Equally important, existing studies of scheduling mechanisms do not provide a direct comparison of House and Senate institutional development. Comparison of the House and Senate gives us useful analytical leverage. The two houses, facing broadly similar workload and partisan pressures but starting from different initial procedural conditions, evolved very different rules and practices to manage the floor agenda. These differences had important consequences for the distribution of procedural advantages and the development of legislative parties.

Setting the legislative agenda became the primary responsibility of majority-party leadership. Consequently, an examination of the evolution of agenda-setting mechanisms yields insights about two of the leading views of congressional parties. One view, the conditional-party-government thesis of Aldrich and Rohde (2000b), proposes that legislative parties are policy coalitions whose cohesiveness varies in response to the degree of homogeneity of the local electorates that elect their members. Legislators' willingness to delegate power to the party leadership—over the agenda and other matters—varies directly with the homogeneity of their electorates and, therefore, their own policy preferences. A second view of legislative parties is that of Cox and McCubbins (1993, 2005), in which parties are considered to be electoral coalitions that form procedural cartels. A legislative party exists to enhance its members' electoral prospects, and it does so primarily by asserting control over the legislative agenda. Agenda control is used to preserve the party's "brand name," by preventing measures from moving to the floor that would divide the party. On floor votes, at least final-passage votes, agenda control produces a united majority party.

Both of these theories posit, either explicitly or implicitly, that parties seek to control outcomes by shaping the legislative agenda, suggesting that both chambers would seek to develop similar, if not identical, agenda-control mechanisms. Yet, as we demonstrate below, in the late 19th and early 20th centuries, the inherited procedural and workload differences between the chambers promoted contrasting approaches to floor scheduling and generated different incentives for the delegation of power to the majority-party leadership. The House of Representatives, starting with a previous-question motion in its rules and a presiding officer elected from its membership, acquired the means for the chamber's majority party to assert procedural control over the floor agenda whenever it could muster a simple majority.[1] The Senate, which did not have a previous-question motion or a presiding officer elected from its membership, lacked the means by which a majority party could assert control over the floor agenda. Instead, it evolved mechanisms that, under most circumstances, require the consent of both majority and minority members to organize floor debate and amending activity. Further, the Senate's majority party took much longer than its House counterpart to place responsibility for floor-agenda setting in a floor leader.

The Motion on the Previous Question and Path Dependency

A potentially strong path dependency exists in the development of congressional agenda-setting mechanisms. This path-dependent process is stronger than those usually encountered in processes of institutional change. Pierson (2000) describes path-dependent processes that are a product of the increasing returns of an institutional arrangement. In fact, increasing returns are a common, maybe the most common, form of path-dependent processes. With little difficulty, we can see this form operating in Congress, too. But what we see in the contrasting paths of House and Senate development is a stronger form.

Both the House and the Senate rules contained a previous-question motion from the First Congress; however, the motion had not yet been transformed into a tool to end debate. The question took the form of "shall the main question be now put," which was the traditional parliamentary means of putting off discussion on a controversial measure. If the motion failed, discussion was put off; if it passed, discussion continued. The early Senate rarely invoked the motion, and eliminated it from its rules in 1806. The House overturned a ruling of the Speaker in 1807 that a successful previous-question motion ended debate on a bill before reversing this precedent in the face of obstruction in 1811. Thus, from 1811 forward, the House had an effective means for a majority to end debate on a bill or proposed rule

change, while the Senate, bound by its lack of a previous-question motion, has never been able to develop an efficient means of ending debate.

Our working hypothesis is that the presence or absence of a motion for the previous question played a pivotal role in the development of House and Senate rules. As Binder (1995, 1094) notes, "The emergence of a majoritarian chamber by the end of the nineteenth century was contingent on the majority's ability to force votes on proposed rules changes . . . without a previous question rule, a simple majority has no such power to direct the course of institutional change." House majority parties have regularly modified and elaborated on their chamber's rules, while Senate majority parties seldom seek, let alone achieve, a change in their chamber's rules. As a consequence, modern House rules are several times as long as Senate rules. When the House and Senate have determined that some limitation on debate is desirable, as for budget measures and trade agreements, special provisions have been written for the Senate to guarantee that debate could be closed (Binder and Smith 1997). But this has happened only when supermajorities favor the change and often has happened as a part of a much larger legislative package.

The Senate's history appears to share features of increasing-returns processes identified by Arthur (1994, 112–113) and reviewed by Pierson (2000, 253). The initial event (dropping the little-used previous-question motion from the rules) seemed unimportant at the time but had lasting effects. The long-term effects were unpredictable because they depended on so many other unpredictable events, the procedural change proved very difficult to reverse (and has not been fully reversed), and the long-term consequence was inefficiency for an institution in which the constitutionally specified decision-making process was no different than that of the House. Because reform of debate-closing rules can be filibustered, this feature of Senate procedural history surely is a self-reinforcing process that can be characterized as path dependent.

Nevertheless, the story of path dependency in Senate procedure is special. Many of the factors—collective-action hurdles, transaction costs, vested interests, accumulated social capital, and so on—cited by Pierson, North (1990), and others that contribute to institutional persistency are not the primary forces underlying the path dependency of Senate procedure. In contrast to the increasing-returns process, the Senate's basic decision rule has not been changed even under conditions of dramatically *decreasing* returns for the majority of senators. On only rare occasions have the costs of the inherited rules proved so high for a large enough number of senators to produce reform that reduced the threshold for cloture, itself an unwieldy procedure in comparison to House mechanisms for limiting debate, and even then the reforms have been modest. This is the product of the threshold itself and the infrequency with which large majorities arise that may find their enduring interests subverted by the threshold.

Recognition of potentially path-dependent features of congressional procedure is essential to a comparison of House and Senate agenda-setting mechanisms and their implications for the development of legislative parties. House rules have been adopted, modified, or eliminated many times with little or no support from minority-party legislators; Senate rules seldom have. The consequence is a different blend of procedures and parties in the two houses and a different dynamic to the changing role in policy making of the parties of the two houses.

Efforts to Modify the Order of Business

In the late 19th century, the House and Senate faced similar, although certainly not identical, logistical problems in the decades following the Civil War. By the 1880s, both houses faced serious obstacles to the completion of even routine legislative business. Our hypothesis is that two problems—an expanding legislative workload and renewed, sharp partisan conflict—were the mutually reinforcing motivations for change. A large legislative workload reflected an expanding nation, new demands for federal programs, and an increasingly complicated tariff code. The revival of the Democratic Party as Reconstruction ended generated intense competition for control of Congress and eventually yielded very polarized parties, particularly at the turn of the century. Minority obstructionism, made more damaging by the time pressures of a large workload, became a serious problem in both houses.

Before inventing more flexible agenda-setting devices of special rules and UCAs, both houses of Congress addressed the challenges of scheduling with changes in the order of business provided in their standing rules. Over the course of the 19th century, both chambers created special times and days for the transaction of particular kinds of legislative business and identified classes of legislation that could be reported and considered at any time (privileged measures). The daily schedule and classification of legislation were changed frequently, sometimes in response to abusive practices of the membership and sometimes in response to the burden of legislative business (Alexander 1916; Rybicki n.d.).

The challenges were not identical in both houses. The size of the House grew far more rapidly than the Senate as the nation's population grew faster than states were added to the Union. The House was quicker to elaborate a complex order of business and create a set of floor calendars. For example, the House went further than the Senate in limiting certain kinds of motions to specified times or days and eliminating the requirement of gaining recognition on the floor to submit petitions, bills, and reports. In 1890 the regular tinkering with the order of business was overcome by a sweeping set of changes proposed, and later imposed, by Speaker Thomas Brackett Reed (R-Maine). The rules assigned to the Speaker several powers previously reserved for the House (referring bills to committee and disposing of business on the Speaker's table such as executive messages). More important, the Reed rules made it easy for a House majority to continue deliberating on a measure in the "morning hour," which could be stretched to any length, thus undermining a common source of obstructionism in the House.

Ultimately, changes in the formal order of business proved inadequate to the challenge of scheduling important legislation for floor consideration. In both chambers, debates about what to consider next and ad hoc motions from bill managers or sponsors to create special orders were common, often generating confusion about the schedule as well as tension within and between the parties. As we detail in the following sections, the struggle to solve this problem was addressed in fundamentally different ways in the two houses.

The House of Representatives and Special Rules

The House Committee on Rules first gained power to report to the House at all times in 1841, but it would take decades for the committee to begin to play a major role in shaping the agenda and floor debate in the chamber through the use of what we now refer to as special rules. The Committee on Rules quickly moved from reporting "special orders," which provided that measures be considered on the floor outside the regular order, to "special rules," which added limitations on debate or amendments (Bach 1990). By the time of the revolt against Speaker Joseph Cannon during the 61st Congress, the House had almost completely discontinued use of special orders in favor of special rules, and it had developed many of the components of modern-day special rules, including amending restrictions, waivers of points of order, and self-executing provisions.

First Uses of Special Order: Resolutions from the Committee on Rules

The first documented instance of the Committee on Rules attempting to alter the rules for consideration of a specific bill occurred in the 47th

Congress during consideration of the Tariff Act of 1883. The original bill sought to lower the sales tax on tobacco, matches, and medicine and easily passed the House in mid-1882. The Senate took up the bill in early 1883 and made radical changes, striking out all but the enacting clause and transforming the measure into a general tariff-reduction bill (Stanwood 1903, 209). The Senate bill was not wholly acceptable to the Republican leaders in the Senate, but Senators Morrill (R-Vt.), Sherman (R-Ohio), and Aldrich (R-R.I.) allowed the bill to pass with the understanding that they would be able to alter it in conference (McCown 1927, 109). Simultaneously, the House was trying to pass a tariff bill, but a sharply divided Republican caucus was unable to come to agreement on a bill. The result was a House bill with the same title as the Senate measure but one that dealt only with internal taxes, in contrast to the exclusive focus on tariffs in the Senate version. The House Republicans caucused on this issue and voted to disagree with the Senate amendments and request a conference. However, close to 40 members of the Republican caucus were absent from the meeting and presumably would have voted to accept the Senate bill if given the opportunity.

Republican leaders of both chambers sought to pass a bill with significantly higher tariffs than the bill passed by the Senate and decided that the best approach was to get the bill to a conference committee where the provisions of the bill could be amended to provide for higher tariff rates. The House leadership could bring up a motion to disagree with the Senate amendments and go to conference, but under House rules a motion to agree with the Senate amendments would have taken precedence and likely would have passed. An alternative approach was to consider a motion to disagree and request a conference under suspension of the rules, which would require a two-thirds vote of the chamber—a margin that was likely unattainable. A third approach was taken. Representative Reed, who had recently become a member of the Committee on Rules and became Speaker a few years later, authored the following resolution, which was reported from the committee:

> *Resolved*, That during the remainder of the session it shall be in order at any time to move to suspend the rules, which motion shall be decided by a majority vote, to take from the Speaker's table House Bill Number 5538, with Senate amendment thereto, entitled "A bill to reduce internal-revenue taxation," and to declare a disagreement with the Senate amendments to the same and to ask for a committee of conference thereon, to be composed of five members on the part of the House. If such motion shall fail, the bill shall remain upon the Speaker's table unaffected by the decision of the House upon such motion. (*Congressional Record*, February 24, 1883, p. 3259)

The resolution was adopted. It is the first known instance of the adoption of a special order to supplant or supplement the standing rules by a simple majority rather than a two-thirds majority. The episode also demonstrated the potential of the Committee on Rules to augment the power of House majorities by limiting the House to a vote to disagree with the Senate amendments. The rule did not provide for a motion to agree with the Senate amendments, thus forcing a vote between going to conference or not passing a tariff bill. This use of the Rules Committee to shape the agenda allowed majority-party Republicans to ensure that their preferred outcome—a bill with higher tariffs—was adopted while also preventing a vote on the Senate bill, which was preferred by most Democrats and moderate Republicans.

The House was slow to repeat this use of the Committee on Rules. The resolution providing for consideration of the tariff bill was the only one reported by the committee during the 47th Congress; none were reported during the 48th Congress. When interjections into the order of business by the Committee on Rules reappeared during the 49th Congress, they all took the form of special orders—they provided for the consideration of a particular bill or bills from a committee but did not alter the procedures by which the bills were considered. Although the wording of these special orders was not consistent, the following order from the 49th Congress (1885–1887) is typical:

> *Resolved*, That on Tuesday, February 1, 1887, the House will take a recess at 5 o'clock p.m. until half past 7 p.m., and that the evening session shall be devoted exclusively to the consideration of such measures as may be presented by the Committee on Military Affairs. (*Congressional Record*, January 29, 1887, p. 1156)

Special orders were not new features of House procedures, but the ability to change the order of business through a majority rather than supermajority vote was an innovation. The debate on these orders suggests that special orders were not particularly partisan in effect. Minority members still held all parliamentary rights under the "regular order," including the right to offer amendments and dilatory motions. With the burgeoning workload, the House simply needed a more efficient means of reaching bills that were unlikely to be reached by taking bills off the calendar in order. Special orders served this role quite well, often designating days for multiple bills or committees in the same order.

Members soon recognized that the occasional special order was a harbinger of things to come from the Committee on Rules. During debate on a special order in the 49th Congress (1885–1887), Representative Bayne (R-Pa.) observed,

> if the powers of the Committee on Rules, with its special prerogatives and special powers, are to be perverted to the mere object of fixing a night or day for the consideration of special bills to be reported from some particular committee . . . there soon will cease to be any respect for the rules of the House at all. (*Congressional Record*, July 19, 1886, pp. 7156–7157)

The Early Special Rules

The transformation of special orders into special rules began in the 51st Congress (1889–1891), the first with Reed as Speaker. Traditional special orders were still employed, but 7 of the 11 interjections into the regular order by the Committee on Rules in that Congress were special rules. All 7 limited the time for either general debate or amendments under the 5-minute rule, while two of the rules barred all amendments—the first "closed" rules.

The 51st Congress also marked a shift to partisan debate over the content of reports from the Committee on Rules. During debate on the rule for considering the currency bill, a minority party legislator, Representative James Blount (D-Ga.), called attention to the power of special rules to restrict policy alternatives and provide political cover for the majority party:

> If it was permissible for me to state what occurred in the Republican caucus last night, I could show an infinite amount of division; I could show just such a division on other side of the House as makes it necessary to put the whip of this order upon them to save them from such a record as would be terrible to them. . . . Your Republican platform declared for silver coinage. In your secret councils many of you have recognized the importance of some sort of coinage of silver, yet here is an order changing the rules of this House to escape that issue in the Congress of the United States. (*Congressional Record*, June 5, 1890, p. 5646)

The use of special rules to prevent cross-party coalitions from amending or even overturning the legislation of a majority of the majority party has

come to be recognized as a vital source of influence for majority-party leaders (Bach and Smith 1988; Sinclair [Deckard] 1983).

While the 51st Congress marked the beginning of the transformation from special orders to special rules, it would take several Congresses for practices to settle into a predictable form. In the next Congress, with the Democratic party back in the majority, most rules resolutions were special orders. Some were proposed and adopted after a consideration of a bill had begun on the floor and served only to provide for an end to the debate. In the following Congresses, the House adopted hybrid orders that had components of both special rules and special orders, such as the following:

> *Resolved*, That immediately upon the adoption of this order the Committee of the Whole be discharged from the consideration of House bill 1217, and the same be considered in the House as in Committee of the Whole; that only an hour's general debate be allowed, and then said bill shall be considered under the five-minutes' rule [*sic*] for amendment until the hour of 4:30 o'clock p.m., when the previous question shall be considered as ordered on pending amendments and the bill to its passage, when the vote shall be taken without delay or other motion.
>
> That Thursday, the 12th instant, after the second morning hours [*sic*], be assigned to the consideration of business reported by the Committee on Foreign Affairs.
>
> This order not to interfere with the consideration of conference reports or revenue or appropriation bills. (*Congressional Record*, July 11, 1894, pp. 7335–7336)

By the 54th Congress (1895–1897), Reed was back in the Speaker's chair and legislators referred to reports from the Committee on Rules as "rules." The use of special rules began to grow and the rules became increasingly restrictive of amending activity. Some began to streamline activity by including "self-executing" previous-question orders in special rules that had the effect of closing or restricting amending opportunities in the House under the hour rule, such as in this rule:

> *Resolved*, That immediately after the adoption of this resolution it shall be in order in the House to call up for debate, the previous question being considered as ordered, a bill reported by the Ways and Means, entitled "A bill to temporarily increase revenue to meet the expenses of Government and provide against a deficiency;" that at 5 o'clock, without delay or other motion, the vote shall be taken. General leave to print is hereby granted for ten days. (*Congressional Record*, December 26, 1895, p. 305)

This rule eliminated amending opportunities by embedding the previous-question motion in the rule, limited the time for general debate to less than 1 day, and precluded "other motions," such as the motion to recommit.

Thus, over the course of only a few Congresses, the House moved from a body that had a difficult time transacting any business to a body with the means to dispose of major legislation in less than a day. Commenting on this transformation, Representative Bailey (D-Tex.) warned, "It was foolish, I grant you, to debate without deciding; but it is dangerous to decide without debating. . . . This error, sir, is more mischievous than the one which we have abandoned" (*Congressional Record*, December 27, 1895, p. 344). The phrase was borrowed from Senator Henry Cabot Lodge, who had used a different version to criticize the Senate filibuster.

Innovations in special rules were not always restrictive in nature. During consideration of an appropriations bill, members discovered that many of the salaries funded in the bill had not been authorized and were subject to successful points of order raised by minority-party members. The Committee on Rules responded by reporting a rule that read,

> *Resolved*, That hereafter, in consideration of the bill [HR 16472] making appropriations for the legislative, executive, and judicial expenses of the Government, and for other purposes, in the Committee of the Whole House on the state of the Union, it shall be in order to consider, without intervention of a point of order, any section of the bill as reported, except section 8; and upon motion authorized by the Committee on Appropriations it shall be in order to insert in any part of the bill any provision reported as part of the bill and heretofore ruled out on a point of order. (*Congressional Record*, March 28, 1906, p. 4398)

The 1906 special rule appears to have been one of the first rules to waive points of order. This waiver did not have profound policy consequences, but the incident was important for two reasons. First, the rule expanded the repertoire of special rules to supplant a new class of standing rules. Rather than merely limiting debate or amendments, the rule showed that a House majority also could set aside any restriction in the standing rules, which eventually would include germaneness and many other important restrictions. Second, the rule was adopted in response to unanticipated developments on the floor, which in the future would limit the effectiveness of innovative minority tactics.

The ability of majorities to streamline floor action on legislation is one of the defining characteristics of the modern House of Representatives. However, this has not always been the case. Before the development of the

special order and the institution of the Reed rules, the House was chaotic with members regularly obstructing business and arguing over the order of business. The special order and later the special rule developed as means for the House to legislate efficiently and for majority parties to gain control of the agenda. These developments would have been much more difficult, if not impossible, without a previous-question motion. The previous-question motion not only provided a means for the House to close debate on substantive legislation but it allowed a majority to close debate and prevent amendments to special orders and special rules. In less than two decades the House developed many of the features of modern-day special rules, including debate and amendment restrictions, waivers, and self-executing provisions, and often used them for partisan purposes, especially on tariff legislation. Despite the development and innovation of special rules in the late 19th and early 20th centuries, the use of this new procedural tool was limited. It would be decades before the House permitted the Committee on Rules to be the primary agenda setter in the House.

The Senate and Unanimous-Consent Agreements

The term *complex* has sometimes been applied to the important class of UCAs that interests us—those that limit debate or amendments in some way (Keith 1977; Smith and Flathman 1989). In the modern Senate, most complex UCAs are negotiated by, or under the supervision of, the majority leader and are offered by him, but the floor leaders' responsibility for agreements took decades to emerge after UCAs became a regular feature of floor action.[2]

Pre-1914 Period

Although the Senate has always been less formal and more leisurely than the House in floor procedure, the first, and somewhat isolated, use of a unanimous-consent request to limit debate or amendments occurred in 1846 (Keith 1977). Not surprisingly, the 1846 agreement was raised in a most casual way (*Congressional Globe*, April 13, 1846, p. 659). A senator observed that the debate on the Oregon resolutions seemed to be winding down after more than 2 months and that "it would be an accommodation to many Senators to have an understanding as to the exact day" the Senate would vote. The agreement was quite informal—merely to vote on the resolutions in 3 days. A senator noted that the chamber could not be sure that debate on amendments would end by then; another assured him that the remaining debate would be brief. Notably, one senator said that he "had not the slightest objection to fixing upon some day for terminating the debate, provided it was not to be regarded as establishing a precedent." On the appointed day, the debate lasted longer than some senators had expected, but they brought the resolutions to a vote.

Identifying complex UCAs in the mid-19th century is difficult. As informal agreements, UCAs were not reported or indexed in the *Senate Journal* or other official publications. Perusal of the *Congressional Globe*, which does not provide reliable coverage of all procedural action, indicates that by 1870 UCAs were being used with some frequency. As many are today, the UCAs were time-limitation agreements that provided for disposal of a measure by a specified time. The typical UCA provided for a vote on a bill by a certain time, usually 4 or 5 o'clock, 1 or 2 days in the future. The presiding officer usually repeated the agreement once offered so that senators could hear and understand it.

As early as 1870 the Senate found itself bound by an interpretation of the parliamentary status of UCAs that made them difficult to enforce. On Saturday July 4, 1870, with many senators losing patience as their summer stay in Washington was extended, the hour for a final vote on a naturalization bill under a UCA passed, with opponents continuing to press amendments and debate the bill. Senators observed that the debate continued in violation of the UCA. John Sherman, in fact, complained that it was the first violation of a UCA in the history of the practice (*Congressional Globe*, July 4, 1870, p. 5152). When a point of order was raised by another senator, the president pro tempore, Henry Anthony, stated that the chair did not have the power to enforce the agreement. "The agreement under which the Senate came to an understanding to vote at five o'clock on Saturday was by unanimous consent," Anthony declared. "It was not an order entered on the *Journal*, but merely an understanding among Senators. The Chair has no power and no right to enforce an agreement of that kind" (*Congressional Globe*, July 4, 1870, p. 5150). Anthony's repeated rulings established a precedent that UCAs could not be enforced by the presiding officer, a precedent that led to much confusion over the next four decades.

Anthony's interpretation appeared to be based on the casual nature of UCAs in the years before the Civil War, when UCAs were viewed as mere gentlemen's agreements. The argument was based on two premises—that UCAs were not recognized in the Senate's rules and that the presiding officer had no authority except that granted explicitly by the rules or an order of the Senate. After Anthony left the Senate, Henry Cabot Lodge

(R-Mass.) became the Senate's unofficial parliamentarian-in-residence and frequently articulated this rationale.

In practice, presiding officers after Anthony were not entirely consistent in their approach to UCAs in the late 19th century. Most presiding officers contributed to the implementation of UCAs by noting that the time had arrived to call up or vote on a measure subject to a UCA. But senators varied in their understanding of the role of the presiding officer, and the role of presiding officers in facilitating the UCA process was not settled before the century ended. Most presiding officers routinely refused to enforce UCAs, but others chose to go their own way and their colleagues tolerated their choices. In 1888 Senator John Ingalls (R-Kans.), then president pro tempore, interrupted a senator who exceeded the 5-minute limit for a speech under a UCA and asked if there was objection to allowing the senator to continue (*Congressional Record*, 1888, p. 1848). Ingalls was not alone in enforcing the UCA limits on speeches (*Congressional Record*, 1908, p. 3615). President Pro Tempore William Frye (R-Maine) once took the initiative to note that debate was not in order under a UCA and ruled on a point of order raised against amendments based on provisions of the same UCA (*Congressional Record*, 1900, pp. 2448–2449). And Vice Presidents Charles Fairbanks and James Sherman were not timid about enforcing UCAs at times (*Congressional Record*, 1908, p. 3602; *Congressional Record*, 1909, pp. 549–550; *Congressional Record*, 1912, p. 10974; *Congressional Record*, December 8, 1913, pp. 423–426).

Responsibility for negotiating UCAs appears to have rested primarily on the shoulders of bill managers until the second decade of the 20th century. The *Congressional Record* is replete with long exchanges among senators about a bill manager's unanimous-consent request. Confusion about the provisions of UCAs was common, with senators sometimes quoting the *Record* to prove a point. Senators sometimes complained that they were not present when unanimous consent was granted.

Further complicating the use of UCAs after the turn of the century was the thesis that UCAs could not be modified, even by unanimous consent. Lodge made this argument in 1907 (*Congressional Record*, January 10, 1907, pp. 878–879) and consistently maintained the position (*Congressional Record*, January 10, 1913, pp. 1389–1390) along with the view that the presiding officer could not enforce UCAs. Lodge's theory was that a UCA, as a gentlemen's agreement, created an obligation that could not be violated at a later time by senators who happened to be on the floor and were seeking a modification. Lodge argued, as Sherman had maintained in 1870, that modifications in UCAs, even by unanimous consent, would eventually undermine confidence in UCAs. Although presiding officers were not consistent on this matter, the Lodge thesis was the prevailing interpretation during the first decade of the 20th century.

Agreements that provided for a vote on a bill and pending amendments at a certain time were a regular part of floor-management practice at the turn of the century. Although compliance with UCAs was generally good, critical features of modern floor practice were not in place. No formal party floor leaders were present to orchestrate agreements and oversee their implementation. The thesis that UCAs could not be modified by unanimous consent made them inflexible tools for scheduling. Presiding officers enforced agreements sporadically, whether because of the ignorance of precedent or the forbearance of senators.

In the first years of the 20th century, the Senate adopted practices that reduced confusion about UCAs. Senators began to submit unanimous-consent requests in writing to the desk. UCAs were often read by the secretary at the request of the presiding officer. UCAs that were intended to govern the conduct of business on subsequent days were printed on the title page of the daily Calendar of Business as long as they were operative. And the secretary appears to have reworded numerous agreements so that they would conform to what had become the "usual form," as some senators noted on the floor. These innovations occurred without any official recognition of the UCAs in the standing rules of the Senate.

Arguments about the twisted logic in Senate precedents on UCAs came to a head in January 1913 (*Congressional Record*, January 10–11, 1913, pp. 1324–1329, 1354–1356, 1388–1395). After having failed in previous days to gain unanimous consent for consideration and a vote on a prohibition bill, Newell Sanders (R-Tenn.) asked for unanimous consent once again and, probably much to his surprise, received it. Reed Smoot (R-Utah) quickly inquired, "Was there a unanimous consent agreement just entered?" When the substitute presiding officer indicated that there was, Smoot immediately asked that it be reconsidered, to which the presiding officer responded that "it is beyond the power of the Senate to change or interfere with a unanimous consent agreement after it is made." Several senators insisted that they had not heard the request and that previous practice in such cases was to have the request submitted to the Senate again. Others, including Lodge, had to confess that a UCA must be observed. One senator, Joseph Bristow (R-Kans.), proclaimed that he was free to violate the UCA. The next day, Smoot suggested that the request be resubmitted to the Senate. Over the strong protest of another Republican, New Hampshire's Jacob Gallinger, President Pro Tempore Augustus Bacon (D-Ga.), now back in the chair, indicated that he had no power to rule on the matter and allowed the issue to be decided by the Senate. A large majority voted to have the request resubmitted, which it was, and Smoot promptly objected to the request. Gallinger then restated the request—with a different date for action on the measure—and it was accepted.

By the beginning of the next session, a committee recommended the adoption of a new rule, an additional paragraph for rule 12. The rule provided that

> no request by a Senator for unanimous consent for the taking of a final vote on a specified date upon the passage of a bill or joint resolution shall be submitted to the Senate for agreement thereto until, upon a roll call ordered for the purpose by the presiding officer, it shall be disclosed that a quorum of the Senate is present; and when unanimous consent is thus given, the same shall operate as the order of the Senate, but any unanimous consent may be revoked by another unanimous consent granted in the manner prescribed above upon one day's notice. (Rule 12 [4])

The requirement for a quorum call was not controversial. Even the provision for UCAs to be considered orders of the Senate, enabling the presiding officer to enforce them, received little discussion. Lodge and Smoot complained about the ability to modify UCAs by unanimous consent but appeared to accept the logic once the proponents of the rule accepted an amendment that required 1 day's notice of a request to modify such a UCA (one providing for a final vote). Later rulings would allow the 1-day notice requirement to be waived by unanimous consent (Riddick 1992, 1354). A bipartisan majority supported the proposal, as amended (*Congressional Record*, January 16, 1914, pp. 1756–1759).

Post-1914 Period

With the new rule, UCAs became formally recognized as orders of the Senate. As such, a UCA supersedes Senate rules and precedents that are contrary to its provisions. Presiding officers began to exhibit consistency in their interpretation of the parliamentary status of UCAs and their power to implement them. They would enforce UCAs as all other orders of the Senate and, over time, a large body of precedent accumulated in support of the proposition that presiding officers were obligated to take the initiative in enforcing the provisions of UCAs (on interpretations of UCAs under rule 12, see Riddick 1992, 1311–1369).

By the early 1920s, central features of modern Senate floor practice were in place. As orders of the Senate, UCAs began to be reported faithfully in the *Journal*. It took a few years for floor leaders to assume primary responsibility for negotiating UCAs and managing their approval on the floor. By 1921 party leaders were actively engaged in the process (*Congressional Record*, July 20, 1921, p. 4115, and August 1, 1921, p. 4480). In the 1910s and 1920s, as party leaders assumed control of the Senate floor, the presiding officer's role as neutral arbiter and enforcer of UCAs was settled.

Practices surrounding UCAs were not entirely settled in the mid-20th century. In the last half of the 20th century, the majority leader became more inventive in designing agreements to limit debate and amendments (Smith and Flathman 1989). Just as the House majority leadership began to craft limits on debate and amendments in special rules to the political situation of each bill, Senate majority leaders acquired a larger repertoire of UCA provisions. This process took place in stages.

For more than 30 years, nearly all UCAs propounded were of a standard form. The form is recorded in former Senate parliamentarian Floyd Riddick's *Senate Procedure*:

> Ordered, by unanimous consent, that on the calendar day of _______, 19_______, at not later than _______ o'clock p.m. the Senate will proceed to vote, without further debate, upon any amendment that may be pending, any amendment that may be offered, and upon the bill (*bill number and name*) through the regular parliamentary stages to its final disposition; and that after the hour of _______ o'clock p.m., on said calendar day, no Senator shall speak more than once or longer than _______ minutes upon the bill, or more than once or longer than _______ minutes upon any amendment thereto. (Riddick 1992, 1312)

The purpose of these UCAs was to gain final disposition of a bill, including any action on amendments, by a certain time and to divide time for debate equitably in the meantime.

To see how the content of UCAs evolved since the 1930s, we have coded the provisions of UCAs for selected Congresses. Nearly all complex UCAs were offered by the majority leader so we can safely characterize UCA provisions by leader. The percentages in the table refer to the percentage of all complex UCAs—those that limit debate or amendments in some way—adopted under each leader.

Under Joseph Robinson (D-Ark.), who Gamm and Smith (2002) characterize as the first modern floor leader, and Albin Barkley (D-Ky.), UCAs remained of the traditional form. Their successors, Ernest McFarland

(D-Ariz.), Robert Taft (R-Ohio), and William Knowland (R-Calif.), were not particularly innovative but occasionally singled out one or more amendments for special debate limits. For the most part, these leaders offered time-limitation agreements after debate on a measure had consumed considerable time and as their colleagues came to recognize the importance of moving on to other legislation.

Robinson is noteworthy for another reason vital to the modern use of UCAs. During his tenure, with a friendly vice president presiding, the precedent was established that, when more than one senator seeks recognition, priority of recognition is given to the majority leader.[3] This precedent allows the majority leader to gain recognition to address the Senate, make a motion before another, or ask for unanimous consent. With the right of first recognition, the majority leader is given an opportunity to propound UCAs.

Lyndon Johnson (D-Tex.) has been given credit for great innovation in Senate leadership, including his use of UCAs. Caro (2002), following on Evans and Novak (1966), argues that Johnson was far more aggressive in seeking unanimous consent, and when he overcame objections he immediately went to the floor, gained consent for a time limitation, bullied colleagues into withholding amendments, and rammed the bill through the Senate. More frequently than his predecessors, Johnson successfully propounded time-limitation agreements before the motion to proceed on a measure was offered. Then, much more frequently than earlier UCAs, Johnson's UCAs divided control of time for general debate on a bill between the floor leaders, giving Johnson more control over the flow of debate and an opportunity to offer amendments of his own in a timely way. Moreover, Johnson sought to keep the Senate focused on the bill at hand by barring nongermane amendments when he could. Finally, Johnson's UCAs were more likely to provide for special treatment of one or more amendments than were his predecessors' UCAs (see Smith and Flathman 1989 on UCAs since the early 1950s).

Mike Mansfield (D-Mont.) was far less aggressive than Johnson, but at least at first, the mix of provisions changed little under Mansfield. This did not last long. As senators became more assertive and amending activity expanded, a more tactical, flexible approach to setting the floor agenda was required. This flexibility wasn't always a matter of choice. Under Mansfield, senators often objected to unanimous-consent requests that required amendments to be germane and the use of germaneness provisions dropped (Smith and Flathman 1989, 360).

Robert Byrd (D-W.Va.), who took over routine floor duties for Mansfield in the late 1960s and early 1970s, instituted innovations in UCA practice. Most obviously, Byrd frequently offered multiple UCAs during the course of debate on a single measure. UCAs became far less comprehensive and frequently dealt with a single amendment or short period of time. To be sure, UCAs providing for time agreements on a bill were offered before the debate on the measure began, but they were regularly supplemented during the course of debate. The lower relative frequency of certain kinds of UCA provisions was due to the limited or tactical purpose of many of Byrd's UCAs.

Bryd's successors were not quite so quick to offer UCAs, but they did continue to use the full array of UCA provisions. Omnibus measures—particularly budget measures, which were debated under time limitations established by statute—reduced the number of UCAs propounded by leaders. Beginning in the mid-1980s, UCAs providing for the consideration of a single amendment were more common. The greater frequency of provisions barring second-degree amendments reflected the leaders' efforts to more fully structure the floor agenda when possible. Such provisions were almost always accompanied by provisions barring other motions, appeals, and points of order. At times, although for only a small fraction of bills, amendments to certain sections of bills were barred by UCAs.

Modern UCAs come in all sizes, big and small. While UCAs are often tailored to individual measures and often to brief periods of debate and a single amendment, they also have been used to establish a comprehensive floor agenda for a measure, or even a set of measures, in delicate legislative situations. UCAs have the virtue of being difficult to modify (only by unanimous consent, of course) so they provide a particularly useful means for cementing arrangements intended to guarantee votes on certain measures or amendments or preclude votes on others.

A Still Unsettled Practice

The Senate remains a legislative body with inherent inconsistencies in its rules. Unanimous-consent, supermajority requirements for cloture and other motions, and the constitutional requirement of a simple majority for approving legislation live side by side. On occasion, these inconsistencies surface and senators are confronted with difficult parliamentary choices.

For example, among the issues raised but still not resolved is whether the Senate should, by majority vote, overturn rulings of the presiding officer based on UCAs. A common situation is one in which the presiding officer rules that an amendment is out of order because it violates a UCA that requires amendments to be germane. Should the Senate majority overturn a ruling that an amendment is out of order? The power to appeal a ruling to the Senate may undermine senators' confidence that a UCA will be observed and threaten the entire practice of operating by unanimous consent. But to back away from appeals when proceeding under a UCA hands to the presiding officer a source of influence over outcomes that the Senate has not been explicitly granted.

Lessons from the History of House Special Rules and Senate UCAs

The remarkable parliamentary ingenuity that is reflected in modern House special rules and Senate UCAs reflects the common purposes of these agenda-setting mechanisms. In both chambers, majority-party leaders seek to structure debate and amending activity to improve legislative efficiency and to the advantage of their parties. Yet the differences in the tools available to set the agenda are one of the most prominent and visible differences between the contemporary House and Senate. The House is often considered a model of legislative efficiency, while legislating in the Senate is often an arduous, if not impossible, task. That these differences persist over time is quite remarkable, given that both chambers respond to similar external forces that shape the public agenda and that the chambers themselves determine their floor procedures. Differences in their decision rules (simple majorities vs. unanimous consent) and the inherited body of floor procedures, themselves in part a product of the long-standing decision rules, have generated different paths of development in agenda setting and a different repertoire of strategies for floor leaders.

Path Dependency: The Previous-Question Motion and Agenda Setting

The presence or absence of a motion for the previous question has played a pivotal role in the development of House and Senate rules. Reducing opportunities to speak, offer legislation or amendments, and obstruct action is the essence of efforts to improve efficiency in legislative agenda setting and related decision-making processes. Such efforts generally serve the interest of the majority more than the minority. Consequently, the minority often argues that efficiency-improving changes undermine a fair, deliberative process and opposes the changes. In the House, majority support for a previous-question motion allows the majority party to get a vote on a rules change and impose its will on the minority. In the Senate, organized minority-party opposition is generally enough to prevent a vote on a rules change. The consequence is that the House has a body of rules and precedents that allow a simple majority to set its agenda. The Senate never has, even though Senate majorities have sometimes expressed an interest in efficiency-improving reforms (Binder and Smith 1997).

Path Dependency: Institutional Constraints on Party Development

While agenda-setting mechanisms reflect early procedural choices of the two houses, legislative party development is influenced by development of agenda-setting institutions. In the House, with its effective means of agenda control—perhaps most important, the ability to bring a matter to a vote—the incentive exists to devise the means to coordinate party strategy in setting the agenda and enhancing the ability of leaders to induce cooperation for fellow partisans. In the Senate, the majority party can do little to structure the agenda and get votes without the cooperation of the minority. As a consequence, strong central leadership serves less purpose and may even be more dangerous. Majority-party senators would be suspicious of a leader who can impose discipline on them while making necessary concessions to the minority to acquire unanimous consent or supermajorities to limit debate and amending activity.

The contrasts between the House and Senate give us perspective on two contending views of legislative parties—Aldrich and Rohde's conditional-party-government thesis (also see Cooper and Brady 1981, and Sinclair [Deckard] 1983) and Cox and McCubbins's procedural cartel thesis—both of which largely ignore the Senate (Gamm and Smith 2001).

The conditional-party-government thesis treats legislative parties as policy coalitions—although legislators' policy preferences are largely a product of ebb and flow of election outcomes. The degree of polarization in the policy preferences of members of the two legislative parties determines the powers and aggressiveness of party leaders. Two issues are raised about the conditional-party-government thesis from the record of innovation in House special rules and Senate UCAs.

First, the thesis fails to capture the sometimes one-directional process of innovation in House special rules. While the majority party sometimes redistributes influence over the design of special rules among members of the party, the majority party has not given up its control over special rules and, in several stages, improved special rules as a tool of agenda management. At least some core features of majority-party leadership powers are not wholly cyclical but rather seem to have cumulative elements.

Second, applications of the conditional-party-government thesis have little to say about the Senate. In fact, nothing in this chapter contradicts

Gamm and Smith's (2001) claim that the conditional-party-government thesis does not fit the Senate, where little phasing in the power delegated to central leaders is detectable. The inability of the Senate majority to impose rules changes that disadvantage the minority limits the degree to which even a cohesive majority can empower its leadership and centralize decision making in the chamber. Thus, while the thesis may capture an important tendency in legislative bodies, the variation in centralized decision making is likely to be conditional on the procedural context.

The electoral coalition hypothesis provides the foundation for the procedural cartel thesis. While the procedural cartel model is developed entirely in the context of House decision making, it too should apply to the Senate. There is no apparent rationale for separate House and Senate theories of legislative parties. For the House, Cox and McCubbins place substantial emphasis on the majority party's control of the agenda through the speakership, Committee on Rules, special rules, and other key features of floor procedure. These features are missing in the Senate, so perhaps the procedural alliance represented by the parties is less conspicuous there, but the general underlying logic—electoral concerns motivate cooperation among party members on agenda strategy—should fit the Senate too.

Senate parties seek to structure the floor agenda to their liking even if the chamber lacks rules allowing a simple majority to force action on legislation. Many of the early features of Senate party organization, the caucuses and steering committees, were used to arrange the agenda (Gamm and Smith 2002). Moreover, the history of the Senate is replete with cases of majority party efforts to change the rules—usually to no avail when the proposals disadvantaged the minority. As we have described, the majority-party leaders have been forced to pursue innovative approaches to crafting time agreements and seeking unanimous consent to implement them. Indeed, negotiating UCAs to structure the agenda is probably the single most important legislative task assigned to modern Senate leaders. Furthermore, around UCAs have emerged other practices, such as bill-clearance processes and holds, that represent leaders' efforts to respond to fellow partisans' expectations for floor scheduling while pushing measures vital to the party's collective interests.

In our view, legislative parties are both electoral coalitions and policy coalitions. Resolving conflict between electoral and policy objectives is the everyday burden of parties and their leaders. In fact, we would assert that balancing collective electoral and policy goals is a public good for legislative parties that leaders are asked to provide in the form of legislative strategies.

Both perspectives appear to be essential to understanding legislative parties. On the one hand, the history of House special rules and Senate UCAs indicates that majority parties consistently seek to *create* procedural tools to manage the agenda in their interest and that a certain minimum level of support for efforts to set the agenda are expected of rank-and-file members. Legislative parties surely are, in major part, procedural cartels. On the other hand, the *use* of procedural tools may reflect the extent of agreement about the policy purposes to which partisans hope that they are put. This would be reflected more in the timing and content of special rules and UCAs than in their frequency or, in the case of special rules, the vote margins by which they were adopted.

Different Responses to Similar Conditions

The late 19th century proved to be a critical period for both House and Senate parliamentary practice. Developments common to the two houses—a sizable increase in the legislative workload and the renewal of sharp partisan conflict—led to nearly continuous conflict about the floor agenda and a search for new rules to allow the majority party to get action on its legislation. Modifications of the formal order of business and competing special-order motions were typical of both House and Senate sessions.

We have observed that a critical difference in initial conditions—the presence of a motion for the previous question in the House and the absence of such a motion in the Senate—has been responsible for major differences in procedural development between the two houses since the late 19th century. These institutional features pre-date the modern party system and are clearly rooted in the nature of the two bodies in their formative years (Binder 1995, 1997; Binder and Smith 1997). They created a procedural status quo that was impossible to dislodge. In the House, majorities have no incentive to give up the motion for the previous question because it is the means by which a majority is able to get a decisive vote on a pending question. In the Senate, minorities have no incentive to reinstate a previous-question motion and have managed to retain supermajority rules for closing debate.

Chapter 14

Filibuster Reform in the Senate, 1913–1917

GREGORY KOGER

Introduction

This chapter analyzes the adoption of the first Senate cloture rule in 1917. This institutional change marked the end of the Senate's era of unregulated debate and the beginning of a long struggle over formal constraints on Senate minorities. The basic story of the 1917 rules change is familiar to most congressional scholars: in March 1917, a handful of senators filibustered a bill that authorized antisubmarine weapons on U.S. merchant ships during the waning hours of the 66th Congress. Furious, President Wilson publicly excoriated the Senate and called it back into session to adopt a rule limiting obstruction, which it did. Even though the Senate cloture rule is a central feature in American politics (Krehbiel 1998; Sinclair 2002b), there has been relatively little research on its adoption beyond early descriptive accounts (Burdette 1940; Haynes 1938; Luce 1922) and brief discussions in broad analyses of congressional history (Binder 1997; Binder and Smith 1997; Dion 1997). Ryley (1975) is an exception, but this book-length work devotes little attention to the Senate rule change itself.

Two elements of the basic story are curious. One puzzle is the content of the rule: why did the Senate adopt a two-thirds threshold rather than a simple majority? A second puzzle is the timing of the cloture rule change: why did these events occur in 1917 rather than earlier or later? This chapter